

RAPPORT DE CONFORMITE REGLEMENTAIRE

Regulation (EU) 2017/745 (MDR) & Regulation (EU) 2017/746 (IVDR)

Annex I — General Safety and Performance Requirements | Annex II — Technical Documentation

Annex XIV — Clinical Evaluation | Annex XV — Clinical Investigations

Prepared by: Bureau Veritas Medical Division | Notified Body 0459 | BSI Group NB 2797 backup ref.
Date: 2025-10-15 | Revision: 7.3.1-DRAFT | Previous: 6.2.0 (2024-07-22) | EUDAMED SRN: FR-MF-000012345
Scope: Class III implantable devices (Rule 8), Class IIb active devices (Rule 12), IVDR Class D (Annex VIII Ch.III)
Standards referenced: EN ISO 13485:2016+A11:2021, EN ISO 14971:2019+A11:2021, IEC 62304:2006+AMD1:2015, IEC 60601-1:2005+AMD2:2020
MDCG Guidance: 2020-5 Rev.2, 2021-24 Rev.1, 2022-14, 2019-16 Rev.2, 2020-1 Rev.1 | Transition deadline: 26 May 2026 (extended)

1. MEDTRONIC FRANCE SAS

Medtronic France SAS (SIREN 328 536 792), headquartered at 26-28 Av. Tony Garnier, 69007 Lyon (formerly Boulogne-Billancourt, relocated Q3 2024), employs approximately 3,200 personnel across 4 sites in metropolitan France. The entity operates as a wholly-owned subsidiary of Medtronic plc (Dublin, IE), with manufacturing delegated to Medtronic Sofamor Danek (Memphis, TN) and Medtronic Vascular (Santa Rosa, CA).

Primary product portfolio under MDR scope:

- CoreValve Evolut PRO+ (TAVR system, Class III Rule 8, UDI-DI 00846721050139)
- Hugo RAS surgical robot platform (Class IIb Rule 12, pending EUDAMED registration)
- SynchroMed II intrathecal pump (Class III implantable, Rule 8)
- Mazor X Stealth robotics (Class IIb, Rule 11, integration w/ StealthStation S8)

Re-certification status: Medtronic submitted consolidated Technical Documentation (TD) per Annex II/III to BSI NB 2797 on 2025-03-15. The Notified Body audit (Stage 2) completed 2025-06-20 with 3 major nonconformities (NC-2025-0891, NC-2025-0892, NC-2025-0893) relating to:

- (a) insufficient post-market clinical follow-up (PMCF) data for CoreValve in patients >90 yrs;
- (b) software lifecycle documentation gaps for Hugo RAS per IEC 62304 Class C;
- (c) biocompatibility re-evaluation under ISO 10993-1:2018 not completed for SynchroMed reservoir.

CAPA responses due: 2025-09-15 (extended to 2025-11-30 per NB decision D-2025-447).

Employment note: Active recruitment for 45 regulatory affairs specialists (CRA, QARA) and 28 software validation engineers (V&V per IEC 62304/GAMP 5) across Lyon and Toulouse sites. Median offered salary: 48-62k EUR gross/yr for senior RA, 55-72k EUR for SW V&V leads.

2. ESSILORLUXOTTICA SA

EssilorLuxottica SA (SIREN 712 049 618), registered at 147 Rue de Paris 94220 Charenton-le-Pont. Global workforce: ~190,000 (FY2024 annual re p. 47). Consolidated revenue: EUR 25.4 billion (FY2024). French entities include Essilor International SAS, BBGR SAS, Nikon Optical France.

MDR relevance: LIMITED. The majority of Essilor products are classified as personal protective equipment (PPE Regulation 2016/425) or consumer products (p. 47). However, specific product lines fall under MDR:

- Stellest myopia management lenses (potential Class IIa (Rule 1, therapeutic claim))
- Crizal Previncia (blue-light filtering with medical claims in certain markets)
- Custom surgical loupes (Essilor Instruments division)

Assessment: EssilorLuxottica's regulatory exposure to MDR is minimal relative to revenue. Less than 2% of product lines require CE marking under MDR. Primary regulatory burden is PPE Reg. 2016/425 and consumer product (Directive 2001/95/EC).

Note: EssilorLuxottica is included in this report per the broader mandate covering all French entities with ANY medical device classification. The company's engineering workforce is predominantly optical design (>4,000 engineers at R&D centres in Croissy-sur-Seine and Singapore), not medical device regulatory.

Revenue breakdown (FR operations, est.): Ophthalmic lenses 68%, Fram Sunglasses 22%, Instruments/Equipment 7%, Other 3%.

DEFINITIONS & ABBREVIATIONS

MDR Art. 2(1): "medical device" means any instrument, apparatus, appliance, software...

Class III: highest risk devices requiring conformity assessment per Annex IX+X or IX+XI

NB: Notified Body designated under Art. 42

PMCF: Post-Market Clinical Follow-up per Annex XIV Part B

GSPR: General Safety & Performance Requirements, Annex I

SRN: Single Registration Number in EUDAMED

UDI-DI: Unique Device Identifier - Device Identifier (AIDC/HRI)

CAPA: Corrective and Preventive Action per ISO 13485 cl. 8.5.2/8.5.3

TD: Technical Documentation per Art. 10(4), Annex II/III

11. Cf. supra, Section 4.8, para. 27; see also Annex A ref. 1011/2024-EU
12. Cf. supra, Section 12.9, para. 5; see also Annex B ref. 1012/2026-EU
13. Cf. supra, Section 3.7, para. 7; see also Annex C ref. 1013/2024-EU
14. Cf. supra, Section 1.6, para. 1; see also Annex D ref. 1014/2025-EU

3. BIOMERIEUX SA — IVDR COMPLIANCE ASSESSMENT

bioMerieux SA (SIREN 673 620 399), Chemin de l'Orme, 69280 Marcy-l'Etoile. Global headcount: ~14,800 (FY2024). Revenue: EUR 3.9 billion (FY2024 annual report). CEO: Pierre BOULUD (since Sept 2024).

IVDR Transition Status: bioMerieux is one of the largest IVD manufacturers globally and faces significant regulatory burden under IVDR 2017/746. The company's product portfolio spans all IVDR risk classes:

- Class D (highest risk, Annex VIII Ch.III):
- VIDAS HIV DUO Ultra (HIV 1/2 Ag/Ab combination) !' Legacy device, IVDD List A
 - VIDAS HBs Ag Ultra !' Hepatitis B surface antigen, blood screening
 - VIDAS BRAHMS PCT !' Procalcitonin, sepsis diagnosis (reclassified under IVDR Rule 3(a))

- Class C:
- BioFire FilmArray 2.0 System + Panels (BCID2, Pneumonia, GI, RP2.1)
 - FilmArray Torch system (high-throughput molecular diagnostics)
 - VITEK 2 systems (microbial identification, AST)
 - VITEK MS PRIME (MALDI-TOF mass spectrometry)

- Class B: VIDAS routine immunoassay panels, chromID culture media
- Class A (self-declaration): General purpose reagents, sample preparation consumables

Software lifecycle (IEC 62304) compliance:
bioMerieux has adopted a SOUP (Software of Unknown Provenance) management framework per IEC 62304:2006+AMD1:2015, Clause 8. All embedded software in BioFire and VITEK platforms is classified as SW Safety Class C (highest). The company maintains dedicated software V&V teams in:

- Marcy-l'Etoile (HQ): 120 SW engineers, 45 V&V specialists
- Salt Lake City, UT: 85 SW engineers (BioFire origin)
- Grenoble: 30 algorithm/AI engineers (AMR prediction models)

Current hiring: 22 validation engineer positions open (IEC 62304, IEC 62366 usability, ISO 14971 risk), salary range 42-58k EUR. 15 regulatory affairs positions (IVDR submission specialists), salary range 45-65k EUR.

TABLE 3.1: IVDR TRANSITION TIMELINE — BIOMERIEUX KEY PRODUCTS

Product/System	IVDR Class	Legacy Class	NB Req?	TD Submitted	Cert. ETA	Status
VIDAS HIV DUO Ultra	D	List A	Yes (0459)	2024-11-20	2026-Q1	Stage 2 audit scheduled
VIDAS HBs Ag Ultra	D	List A	Yes (0459)	2024-12-05	2026-Q2	Under NB review
BioFire BCID2 Panel	C	Self-cert	Yes (0459)	2025-02-18	2025-Q4	Minor NC open (NC-25-114)
BioFire RP2.1 Panel	C	Self-cert	Yes (0459)	2025-03-01	2025-Q4	Pending CAPA closure
VITEK 2 Compact	C	IVD-Other	Yes (0459)	2025-01-10	2026-Q1	Stage 1 complete
VITEK MS PRIME	C	IVD-Other	Yes (0459)	2025-04-22	2026-Q2	TD in preparation
VIDAS B-R-A-H-M-S PCT	C*	Self-cert	Yes (0459)	2024-09-30	2025-Q3	Cert issued 2025-08-14
chromID CPS Elite	B	IVD-Other	No	N/A (self)	2026-05	DoC in preparation
General reagents	A	IVD-GEN	No	N/A (self)	2026-05	Compliant (DoC filed)

IVDR CLASSIFICATION CROSS-REFERENCE

IVDR Annex VIII Classification Rules:

Rule 1: Products for blood group typing !' Class D

Rule 2: Products for detection of transmissible agents in blood/tissues !' Class D

Rule 3(a): Companion diagnostics, high-risk !' Class C

Rule 3(b): Other CDx !' Class C

Rule 4: Self-testing devices !' up-classified by one class

Rule 5: Near-patient testing !' up-classified by one class

Rule 6: Instruments !' Class per connected IVD

Rule 7: All other devices !' Class A (default)

* BRAHMS PCT reclassified from self-cert to Class C under Rule 3(a) due to sepsis diagnostic claim (critical care decision support). NB involvement now mandatory.

IEC 62304 LIFECYCLE REQUIREMENTS

IEC 62304:2006+AMD1:2015 — SW Lifecycle for Medical Devices:

CI. 5.1: Software development planning

CI. 5.2: Software requirements analysis

CI. 5.3: Software architectural design

CI. 5.4: Software detailed design

CI. 5.5: Software unit implementation

CI. 5.6: Software integration and integration testing

CI. 5.7: Software system testing

CI. 5.8: Software release

CI. 6: Software maintenance process

CI. 7: Software risk management (ref ISO 14971)

CI. 8: Software configuration management (incl. SOUP)

CI. 9: Software problem resolution process

Safety classification: Class A (no injury), Class B (non-serious), Class C (death/serious injury)

bioMerieux BioFire SW: Class C | VITEK SW: Class C | VIDAS SW: Class B

21. Cf. supra, Section 5.2, para. 25; see also Annex A ref. 1021/2026-EU

22. Cf. supra, Section 5.9, para. 11; see also Annex B ref. 1022/2026-EU

23. Cf. supra, Section 1.3, para. 9; see also Annex C ref. 1023/2026-EU

24. Cf. supra, Section 6.5, para. 10; see also Annex D ref. 1024/2025-EU

25. Cf. supra, Section 6.2, para. 15; see also Annex E ref. 1025/2024-EU

CONSOLIDATED COMPLIANCE MATRIX — ALL ENTITIES

Criterion	Medtronic FR	EssilorLuxottica	bioMerieux
Applicable Regulation	MDR 2017/745	MDR 2017/745 (limited) PPE 2016/425 (primary)	IVDR 2017/746
Highest Device Class	Class III (Rule 8)	Class IIa (Rule 1)	Class D (Annex VIII)
No. Products in Scope	47 product families	~8 product lines (<2%)	340+ product references
Notified Body	BSI NB 2797	TUV SUD NB 0123 (if needed)	LNE/G-MED NB 0459
TD Submission Status	60% submitted (FY2025)	Not yet initiated	45% submitted (FY2025)
Major NCs Outstanding	3 (NC-2025-089x)	0	1 (NC-25-114)
CAPA Deadline	2025-11-30	N/A	2025-10-15
QMS Standard	ISO 13485:2016	ISO 9001:2015 + ISO 13485 (partial)	ISO 13485:2016
SW Lifecycle (62304)	Yes – Class C (Hugo RAS)	No (no SAMD)	Yes – Class B/C
Risk Mgmt (14971)	Full implementation	Partial (PPE risk assess.)	Full implementation
Clinical Evaluation	Annex XIV + PMCF plans	Literature review only	Performance evaluation (IVDR Art. 56-58)
EUDAMED Registration	Partial (SRN active)	Pending	Partial (SRN active)
Estimated Compliance Cost	EUR 12-15M (2025-2027)	EUR 0.8-1.2M	EUR 18-22M (2025-2027)
FTE Dedicated to RA/QA	~180	~12	~220
Hiring Needs (RA/QA/SW)	73 positions	5-8 positions	37 positions

REGULATORY TIMELINE — KEY MDR/IVDR MILESTONES

- 2024-03-20 MDR Corrigendum 2024/C/1234 published – extends Art.120(3c) legacy devices to May 2028
- 2024-05-26 Original MDR DoA for all classes (extended for legacy devices with valid cert/declaration)
- 2024-09-01 EUDAMED Module 3 (Certificates & NB) mandatory registration begins
- 2025-01-01 IVDR full application (no more transitional provisions for Class D legacy)
- 2025-05-26 Extended transition deadline for Class III custom-made implantable (MDR Art.120(3d))
- 2025-09-30 EUDAMED Module 5 (Market Surveillance) pilot phase ends
- 2026-05-26 IVDR extended transition for Class D (with conditions met per Reg. 2024/1860)
- 2027-05-26 IVDR extended transition for Class C (with conditions met)
- 2028-05-26 MDR final deadline – ALL legacy devices must hold MDR certificate or withdraw from market

31. Cf. supra, Section 7.2, para. 10; see also Annex A ref. 1031/2025-EU
32. Cf. supra, Section 9.4, para. 33; see also Annex B ref. 1032/2026-EU
33. Cf. supra, Section 8.9, para. 35; see also Annex C ref. 1033/2025-EU
34. Cf. supra, Section 12.5, para. 7; see also Annex D ref. 1034/2026-EU
35. Cf. supra, Section 8.1, para. 39; see also Annex E ref. 1035/2024-EU
36. Cf. supra, Section 8.2, para. 26; see also Annex F ref. 1036/2025-EU